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Legal Reasoning Midterm - Grade: 98/100

As a writing sample, I am attaching my response to a question from a Legal Reasoning midterm exam. This question required a general analysis of statutory interpretation methods. For reference, the question is included below.

Question #4

Imagine you're a clerk for a federal appellate judge. She has just read the attached excerpt from Richard Re's article, "The New Holy Trinity," and wants your opinion. Would you recommend that she adopt the "New Holy Trinity" approach to statutory interpretation? Explain why or why not. She is happy for you to discuss specific cases but is most interested in you basing your recommendation on an explanation of what you think are the most important considerations in crafting a method of statutory interpretation.

Statutory interpretation invariably encounters a recurring dilemma: distinguishing between what is clear and what is ambiguous, and whether it is permissible or necessary to confine interpretation strictly to the statute's text or extrapolate from it to extend to varying circumstances. Out of this tension, the conflict between textualism and purposivism has grown. These two conflicting approaches seek legitimacy in opposing logic, and the choices made between them have far-reaching political consequences and a direct effect on the course of American democracy. Both approaches are flawed, but less so when combined together.

Re describes the evolution of a new purposive interpretative method: *The New Holy Trinity*, in which "text, pragmatism, and purpose" are all given weight. In some ways, this approach addresses the critiques of both Textualism and Purposivism, adhering "to clear text when it's the product of deliberate compromise, but not when it springs from an inattentive mistake." This attempt to balance text and purpose is imperfect, yet it is the most complete and dynamic approach possible and should therefore be adopted.

The *old* Holy Trinity that Re describes, is one in which judges expressly elevate legislative purpose over text. Justice Scalia, a champion of New Textualism, rejects this approach and any form of purposivism. He argues that the rule of law requires judges to engage only with the literal text that Congress signed. He claims that textualism respects the separation of powers, as the courts' role is only to interpret the law, while lawmaking should be left to the legislature. Unlike purposivism, Scalia argues, restricting interpretation to the text, limits judicial discretion and ensures that the judiciary's role remains within its proper bounds. He also maintains that purposivism presumes a unique purpose to each law, that does not exist. In contrast, I believe that such rigid and literal interpretations of the law do not account for our changing world and fail to adapt to evolving societal needs, as foreseen in the Elastic Clause of the Constitution. Also, by solely analyzing the text, judges potentially undermine the very purpose of the law they seek to apply.

The *New Holy Trinity* allows for a understanding varying scopes while staying true to the text in a reasonable manner. As Re explains, the text does play a meaningful role in this new interpretation, such that purpose and pragmatic considerations are used to identify "textual clarity or ambiguity," but not without textual support. In this interpretation, textual support does not necessarily mean the plain meaning of a specific provision, but support in the statute's entire text and how it can and should inform the ambiguity in question.

Many argue that textualism respects the separation of powers and the practice of law and to interpret beyond the text is to upset this balance and undermine legal reasoning. Some cynics argue that all judges are political, and textualism does a better job of curbing value judgments than purposivism, granting them less "legislative" power. But through cannon v. anti-cannon manipulation and Scalia's demonstrated hypocrisies in supreme court decisions, it is clear that a

text-based argument can be construed to bear multiple meanings in the same way that multiple purposes can be inferred and reasoned for a statute. Legal interpretation is imperfect, and I do not believe it should be held to the standard of always finding the "right answer," as multiple interpretations can simultaneously exist and be valid. Which is why it is so dangerous for textualism to hide behind this facade of being systemic and value-free when it can and has been applied with political intent. This new approach is more honest about its divergences from what a textualist would term plain meaning, as it must explain its scope and logic. Some argue textualism's illusion of constraining the courts is essential to upholding the state and fostering public trust in the law. But, it disrespects the practice of law to pretend it is something that it is not. Furthermore, respecting the letter of the law, which is what legislators sign on to, is not immediately forgotten when judges take into account more than the text. The *New Holy Trinity* provides a form of interpretation that honors the text while acknowledging that judges do not interpret in a vacuum.

We should not pretend to interpret the law in isolation of reality and treat it like a puzzle with one correct answer. In an ideal world, perhaps that is the fairest system. One in which interpretation is purely systematic. But, in the U.S., judges are aware of the implications of their decisions, an awareness that could well affect their interpretations. It is a disservice to pretend otherwise, and legal reasoning should adapt accordingly - not to undo the separation of powers and grant courts legislative power, but to stay true to the text while also understanding the goals and implications of statutes – being both pragmatic and realist. I recognize the Textualist argument that this is a slippery slope, but judges are there to interpret and reason, and have been trained to navigate this very "slope."

In isolation and confined to specific texts, I believe literal interpretations may be harder to manipulate than pragmatic ones, but that does not warrant complete rejection of purpose. Judges should be capable of working within the textual confines of a statute to understand the very abstractions that give laws the power to fulfill their highest possible ideas and goals.

Also, our democracy and its separation of powers were created to empower and protect the people of the United States. Strict textualism often gets in the way of this – see *King v. Burwell*, where one sentence, if applied literally without any context, would have undermined access to healthcare for millions. We can choose to find ambiguity in a dictionary or in the way that a sentence, despite its literal meaning, provides no logical sense in the grand scheme of the Act. Especially, in our current political climate, in which congress has less opportunity to overrule court interpretations, strict textualism may hinder the functioning of laws designed to protect and empower the country.